THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING article 38(a) of the Convention o n the International Maritime Organization concerning the functions of the Marine Environ ment Protection Committee (the Committee) conferred upon it by international conventions for the prevention and control of marine pollution, NOTING article 16 of the Internation al Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1973 Convention") and article VI of the Protocol of 1978 relating to the Interna tional Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1978 Protocol") which together specify the amendment procedure of the 1978 Pr otocol and confer upon the appropriate body of the - Ships, 1973 (hereinafter referred t o as the "1978 Protocol") which together specify the amendment procedure of the 1978 Pro tocol and confer upon the appropriate body of the Organization the function of consideri ng and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (MAR POL 73178), HAVING CONSIDERED draft amendments to Annex V of MARPOL 73178, 1.

ADOPTS, in accordance with article 16(2)(d) of the 1973 Convention, the amendments to An nex V of MAR POL 73178, the text of which is set out at annex to the present resolution; 2.

DETERMINES, in accordance with article 16(2)(f)(iii) of the 1973 Convention, that the am endments shall be deemed to have been accepted on 1 July 2012 unless, prior to that date , not less than one third of the Parties or Parties the combined merchant fleets of whic h constitute not less than 50 per cent o